

OREGON STATE HOSPITAL

POLICY

SECTION 8:	Safety, Security, Emergency Management	POLICY: 8.040
SUBJECT:	Acute Milieu Emergency	
POINT PERSON:	Chief Medical Officer	
APPROVED:	Sara Walker, MD  Interim Superintendent	DATE: JULY 25, 2024
SELECT ONE:	☐ New policy ☒ Reaffirmation of existing policy ☐ Minor/technical revision of existing policy ☐ Major revision of existing policy	

I. PURPOSE AND APPLICABILITY

- A. Oregon State Hospital (OSH) will strive to provide a safe milieu for patients, staff, and others. In the event of imminent danger of significant harm to a group of patients and staff (e.g., multiple homicidal threats, threats of hostage situations, threats of rioting), "Acute Milieu Emergency (AME) status" may be instituted to facilitate resources necessary to resolve the situation and return the milieu to a safe, therapeutic environment. This policy and attached procedures establish parameters and requirements concerning instituting an AME.
- B. This policy applies to all staff and patients.

II. POLICY

- A. High-acuity situations regularly encountered during what could be considered a normal course of a high-acuity milieu (e.g., several patients fighting or multiple discrete events of imminent danger of harm) do not meet criteria for implementing this policy.
- B. If a situation escalates to the point of considering AME status, the OSH Incident Command System (ICS) may be initiated in accordance with the OSH Emergency Operations Plan (EOP) to help manage the situation and necessary resources.
- C. The Superintendent may request additional notifications and consultations according to situational needs.
- D. A patient maintains all rights as indicated in 42 Code of Federal Regulations § 482.13 and applicable Oregon Revised Statutes, Oregon Administrative Rules,

and OSH policies, except as limited by application of this policy. Any limitation to a patient's rights must be clinically justified, explained to the patient, and documented in the patient's medical record.

- E. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- F. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Acute milieu emergency (AME) status" is a designation indicating a critical large-scale emergency in a patient-care area where the behavior or threatened behavior of multiple people indicates imminent danger of significant harm for a group of people in the area.
- B. "Imminent danger of harm" in this policy means a substantial likelihood of immediate physical harm to the patient or others, an immediate and substantial likelihood of significant property damage, or an immediate and serious disruption of the activities of other patients in the area.
 - 1. A situation in which a patient is shouting or arguing with staff does not on its own constitute immediate danger of harm.
- C. "Incident Command System (ICS)" is an organizational management system which integrates facilities, equipment, personnel, procedures, and communications to manage large-scale or high-risk emergency incidents.
- D. "Patient-care area" for the purpose of this policy means any portion of the facility wherein a patient is intended to be examined or treated.
- E. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. PROCEDURES

Procedures A Acute Milieu Emergency Procedures

V. RELATED OSH POLICIES AND PROTOCOLS

6.003 Seclusion and Restraint

6.010 Enhanced Supervision

7.005 Patient Rights

7.008 Patient Abuse or Mistreatment Allegation Reporting

8.014 Room, Unit, and Treatment Mall Searches

8.019 Staff Response to Alleged Criminal Acts and Contraband

8.041 Patient Personal Searches

VI. REFERENCES

42 CFR § 482.13.

Joint Commission Resources, Inc. (2024). *The joint commission comprehensive accreditation manual for hospitals*, EM.09.01.01. Oakbrook Terrace, IL: Author.

Joint Commission Resources, Inc. (2024). *The joint commission comprehensive accreditation manual for hospitals*, EM.10.01.01. Oakbrook Terrace, IL: Author.

Oregon Revised Statute § 426.385.